

1
2
3
4
5
6
7
8
9
0
1
2
3
4
5
6
7
8
9
0
1
2
3
4

February 11, 2025

By: Hamilton

An Act relating to civil procedure; amending 12 O.S. 2021, Section 131, which relates to venue; establishing proper venue for certain actions; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 12 O.S. 2021, Section 131, is amended to read as follows:

Section 131. Except as provided in Section 132 of this title or Section 163 of Title 51 of the Oklahoma Statutes:

1. Actions for the following causes shall be brought in the county in which the subject of the action is situated:

- a. for the recovery of real property, or of any estate, or interest therein, or the determination in any form of any such right or interest,
- b. for the partition of real property,
- c. for the sale of real property under a mortgage, lien, or other encumbrance or charge, and

1 d. to quiet title, to establish a trust in, remove a
2 cloud on, set aside a conveyance of, or to enforce or
3 set aside an agreement to convey real property; ~~and~~

4 2. For all damages to land, crops, or improvements thereon,
5 actions shall be brought in the county where the damage occurs; and

6 3. For disputes related to repairs or improvements made on real
7 property or fixtures attached to real property, actions shall be
8 brought in the county where the real property is located.

9 SECTION 2. This act shall become effective November 1, 2025.

10 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY
11 February 11, 2025 - DO PASS
12
13
14
15
16
17
18
19
20
21
22
23
24